



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Shrednik, PLA, Parks and Greenway Planner and Member of the Belvoir Steering Committee

Subject: "A RESOLUTION TO EFFECTUATE APPROPRIATE PROPERTY RECORD CORRECTIONS, AUTHORIZING THE MAYOR TO EXECUTE ALL NECESSARY DOCUMENTS RELATED TO AMENDING AND EXTINGUISHING CERTAIN EASEMENT AGREEMENTS AFFECTING A PORTION OF THE BELVOIR RANCH AND THE PROPERTIES DIRECTLY NORTH AND SOUTH OF THAT PORTION OF THE BELVOIR RANCH."

Date: December 6, 2024

Background:

The item for consideration is an authorization from Council to allow the Mayor with the support of City staff to amend access easements north of the Robert Green property to meet actual access road conditions and to extinguish the City's public trail easement that was gifted to the City by Mr. Green in 2015. (City Contract #6431).

City staff and members of the Belvoir Steering Committee, to include myself, Vicki Nemecek, Seth Lloyd, Charles Bloom, Jack Studley, Stefanie Boster, John Brodie, Tom Cobb, and Brent Lathrop (The Nature Conservancy) met on December 5, 2024, to discuss the matters of both the road access easements through the Armstrong and City owned properties north of the Green property as well as the trail easement that was gifted to the City by Mr. Green in 2015. All agreed that it was appropriate to recommend to the Governing Body that it authorize the Mayor to execute the necessary documents amending the access road easements and extinguishing the trail easement. This action would allow Mr. Green to sell his property and is also in the best interests of the City. The changes will address significant deviations between the use of the current roads, which do not align with the attendant legal access authority. The changes would also allow the City to refocus its finite resources and funding on the existing 20,000 acres already owned by the City, to include the design and negotiation of a railroad crossing to the Big Hole. This access is one of the key objectives for the Belvoir property.

The City recently received an appraisal for the Green property, dated November 15, 2024. The appraisal was for 667 acres of land and a residence. The property appraised for \$2,085,000.00. Per

Mr. Green and family, a prospective buyer has offered \$3.5 million for the property but the City's trail easement causes significant concern. This is understandable since it would be difficult if not impossible to keep public users within this easement and not have them wandering on other parts of the private property, which property is already encumbered by a conservation easement.

If the City were to consider purchasing the Green property, it would likely have to match or exceed what is being offered by the prospective buyer and the purchase would not provide any better chances of crossing the railroad than what exists now on the City owned property. Further, the trail easement on Mr. Green's property is not necessary for providing trail access to the Big Hole, which can be accessed directly through City owned property. Finally, Mr. Green's easement across the City's property to the north does not specify maintenance responsibilities for that access. Were the City to agree to extinguishing the trail easement, in return the City could clarify that the owner of the Green property is responsible for maintenance on that access and not the City.

The Belvoir Steering Committee recommends approval of this resolution allowing the Mayor with the support of City staff to adjust the existing access easements to the north of the Green property, and to extinguish the trail easement on the Green property in response to appropriate concessions or consideration by the owners.

Enclosures:

Record of Survey/Map

Easement Agreement between Robert E. Green Sr. Living Trust, August 11, 2015, Contract #6431

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION TO EFFECTUATE APPROPRIATE PROPERTY RECORD CORRECTIONS, AUTHORIZING THE MAYOR TO EXECUTE ALL NECESSARY DOCUMENTS RELATED TO AMENDING AND EXTINGUISHING CERTAIN EASEMENT AGREEMENTS AFFECTING A PORTION OF THE BELVOIR RANCH AND THE PROPERTIES DIRECTLY NORTH AND SOUTH OF THAT PORTION OF THE BELVOIR RANCH."

WHEREAS, the Belvoir Ranch is owned by the City of Cheyenne, a section of which (the "Ranch Property"), is located between the Union Pacific Railroad (UPRR) to the south, Interstate 80 generally to the north and more particularly Harriman Road to the north/northwest. Other sections of the Belvoir Ranch lie south of the UPRR, as does the majority of the Big Hole property, which borders the state of Colorado;

WHEREAS, David Armstrong, et ux, are the owners of the property directly to the North of the Ranch Property (the "Armstrong Property");

WHEREAS, Harriman Road runs across the northwest portion of the Armstrong Property. The City has an access easement across the Armstrong Property along the southwestern section, allowing access from Harriman Road to the northern portion of the Ranch Property;

WHEREAS, over time the physical route for the City's use of the access easement across the Armstrong Property has notably deviated from the original access route granted by the owners of the Armstrong Property, resulting in the use of a road that does not align with the City's legal access authority;

WHEREAS, the owners of the Armstrong Property have agreed to work with the City to address this issue by modifying the City's easement in order for the City's physical access to be in-line with the underlying legal authority. Modifying the easement is in the best interests of both the City and the owners of the Armstrong Property;

WHEREAS, the owners of the Armstrong Property are willing to modify the current easement if the City agrees to install a fence along the eastside of the modified easement to create a buffer between the City's access and the Armstrong Property;

WHEREAS, the Robert E. Green, Sr. Living Trust is the owner of the property directly to the South of the City's Ranch Property (the "Green property"), for which the City's predecessor in interest granted a private access easement across the Ranch Property;

WHEREAS, over time the physical route for accessing the Green Property has deviated significantly from the original route of access granted by the City's predecessor in interest resulting in the use of a road that does not align with legal access authority for the Green Property;

WHEREAS, the private access easement for the Green Property is silent on the maintenance responsibilities for that access and it is in the interests of the City and the owners of the Green Property to clarify those maintenance responsibilities;

WHEREAS, the owner of the Green Property wishes to amend the current access agreement to more accurately reflect its current use;

WHEREAS, the City executed an easement agreement with the owners of the Green Property, which easement provides the City with access across the Green property for public trails and related accommodations. The easement was gifted to the City and the City did not provide any financial consideration for the trails easement;

WHEREAS, the City's public trails easement across the Green property has not aided or otherwise assisted the City with access issues more largely affecting the Belvoir Ranch and is not necessary for any other purpose;

WHEREAS, the City does not have the ability to maintain the easement, were it to be developed for public trails. Further, it is in the interest of the City to clarify the maintenance responsibilities for the private access easement to the Green Property; and

WHEREAS, it is in the best interests of the City to vacate or extinguish the public trails easement on the condition that the maintenance responsibilities for the private access easement to the Green Property are clearly assigned to the owners of that property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor is hereby authorized to execute any and all necessary documents related to extinguishing, amending or otherwise modifying the easements as provided in this resolution to effectuate the intent as herein stated.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1	30° 56' 16"	2664.93'	N52° 29' 26"E	1820.20'	1857.58'
C2	34° 39' 19"	2664.93'	N89° 47' 17"E	1587.42'	1611.88'

LAND DESCRIPTION

In Township 12 North, Range 70 West of the 6th P.M.,
Laramie County, Wyoming:
All of Sections 11 and 14 lying south of that land conveyed
to Union Pacific Railroad Company in Warranty Deed form
Florence Ripple Krieger, a widow, recorded April 2, 1952 in
Book 515, Page 243

NOTE:
BOOK 515, PAGE 243 DESCRIBES THE CENTERLINE OF THE TRACKS AND
CURVES BEING SPIRALED CURVES. IT IS GENERALLY ACCEPTED THAT THE
TRACKS ARE SPIRAL CURVES BUT THE RIGHT OF WAY IS BASED ON
SIMPLE CURVES, AS SHOWN HEREON.

TITLE COMMITMENT NOTE

TITLE COMMITMENT NOTE
This survey is based on the report by Westcor Land Title Insurance Company, Commitment Number: 2024-10010, dated October 2, 2024.

LOCATION OF EASEMENT LEGAL DESCRIPTION.

LOCATION OF EXISTING TWO TRACK ROAD.

LOCATION OF OLD TWO TRACK ROAD TO BE CONSIDERED FOR REACTIVATION.

LOCATION OF PROPOSED "PUBLIC ROAD ACCESS" FROM ARMSTRONG FOR POSSIBLE FUTURE DEVELOPMENT.

LEGEND

- SET $\frac{3}{8}$ " X 24" LONG REBAR WITH $1\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P L.S. 5010"
- FOUND $\frac{3}{8}$ " REBAR
- FOUND $\frac{1}{2}$ " IRON PIPE
- # FOUND GLO STONE
- ◆ FOUND NAIL
- FOUND ALUMINUM CAP STAMPED "LS 6099"
- FOUND ALUMINUM CAP STAMPED "SSS P L.S. 2500"
- FOUND BLW BRASS CAP
- FOUND BRASS CAP STAMPED L.S. 682"

EXISTING GRAVEL SURFACE

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Stell Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

DRAFT

**RECORD
OF
SURVEY
FOR
DEAN
ANDERSON**

PORTION OF
SECTIONS 11 AND 14,
TOWNSHIP 12 NORTH, RANGE 70 WEST,
6th P.M., LARAMIE COUNTY, WYOMING
PREPARED November, 2024

STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
 1102 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7273
 756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 322-9789
www.SteilSurvey.com • info@SteilSurvey.com



P. White

Date: Nov 2, 2015

RECORDING REQUESTED BY AND)
WHEN RECORDED RETURN TO:)
City of Cheyenne)
)
)
)
)

(space above this line reserved for recorder's use)

CITY CONTRACT #6431

EASEMENT AGREEMENT

THIS EASEMENT AGREEMENT (the "Agreement") is made this 9th day of November, 2015, by and between Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust, dated August 11, 2015, whose address is 279 Rd. 102, Granite Canon, WY 82059, (the "Grantor"), and the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, whose address is 2101 O'Neil Avenue, Cheyenne, WY 82001 (the "Grantee").

I. RECITALS

A. The Grantor is the owner in fee simple of certain real property located in Laramie County, Wyoming, more particularly described on Exhibit A attached hereto and by reference incorporated herein (the "Grantor's Property").

B. The Grantor's Property is encumbered by a Deed of Conservation Easement held by The Nature Conservancy (the "Conservancy") recorded February 27, 2015 at Reception #655698, Book 2431, Page 648 in the Public Records in Laramie County, Wyoming (the "Conservation Easement").

C. Grantee proposes to develop and maintain a public trails system and open space area called the Belvoir Ranch and Red Mountain (Big Hole) Open Space (the "Open Space Program") over property which is adjacent to and in the vicinity of Grantor's Property.

D. Grantor desires to grant to Grantee a trail easement (The Robert E. Green Trail) over and across Grantor's Property to be used in conjunction with the Open Space Program for the limited purposes and terms as described herein.



RECP #: 673887
RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 153
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 1 OF 9

II. AGREEMENT

NOW, THEREFORE, for Ten and no/100 Dollars (\$10.00) and other valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the parties hereto agree as follows:

1. Conveyance of Public Trail Easement. Grantor hereby grants to Grantee a non-exclusive easement (the "Easement") for non-motorized hiking and biking uses, as is more particularly depicted on Exhibit B attached hereto and incorporated herein by this reference, subject to the terms, conditions and limitations set forth herein. The Easement will consist of a corridor one hundred feet (100') in width and shall run from point to point as identified in Exhibit B. The trail corridor will be further identified by GIS coordinates of the point at which an access gate will be installed near a parking lot located on the Grantor's property and the points at which the trail corridor will intersect the boundary between the Grantor's and Grantee's properties. It is mutually understood and agreed that prior to construction, the alignment of the initial trail corridor may be altered if necessary to accommodate areas that are sensitive due to archeological, endangered species, and other findings that may affect the conservation values of the Conservation Easement. After the trail is constructed, the Easement will be fifty feet (50') in width centered on the centerline of the constructed trail. All ingress and egress points to the trail easement will be controlled by "V" gates to prevent motorized vehicular access to the trail easement.

2. Conservation Easement. The parties acknowledge and agree that the Easement is subordinate and subject to the terms and conditions of the Conservation Easement. To the extent there exists a conflict in terms or conditions between the Conservation Easement and this Easement, the Conservation Easement shall control.

3. Limitations on Grant and Conveyances. In granting the Easement, Grantor expressly represents that Grantor does not:

- A. Extend any assurance that the Easement is safe for any purpose;
- B. Confer upon any member of the public the legal status of an invitee or licensee to whom a duty or care is owed by Grantor; or
- C. Assume responsibility or incur any liability for injury to person or property or for the death of any person caused by the use of the Easement.

4. Management of the Easement.

- A. Except as necessary to construct the Robert E. Green Trail, Grantee shall oversee and manage the Easement so as to promote, protect and preserve the Easement in its present natural, essentially undisturbed state, and the Grantor's use and enjoyment of the Grantor's Property. Such oversight and management shall be consistent with the concepts and general principles contained in this Agreement.



- B. Grantor shall have no responsibility for maintaining, inspecting, policing or generally managing the Easement. Grantee or its designee shall be responsible for monitoring and overseeing the use of the Easement, and enforcing the terms of the Easement, pursuant to the terms set forth herein. It is mutually understood and agreed that the Grantor, the Grantee, the Nature Conservancy, and Larimer County, Colorado, will enter into a management agreement for the future maintenance of the Easement before the trail is opened for public access.
- C. Grantor shall have no obligation to insure or indemnify Grantee for any injury, claim or damage to any person or property while using the Easement, unless caused exclusively by Grantor. Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to Wyo. Stat. Sections 34-19-101 through 34-19-107 (the "Wyoming Landowner Protection Statutes"). Nothing herein is intended to waive any limits on liability afforded to the parties pursuant to the Recreation Safety Act, W.S. § 1-1-121, *et seq.*
- D. Except for enforcement of the terms of this Easement between the parties hereto, the Grantee reserves all immunities and defenses available to Grantee as a governmental entity under the Wyoming Governmental Claims Act, W.S. § 1-39-101, *et seq.*, and other applicable laws of the State of Wyoming.

5. Use Restrictions.

- A. The Easement may be used by the Grantee and members of the public subject to the terms of this Easement and the Conservation Easement. For purposes of this Easement, members of the public are defined as persons who have been granted permission to access the Robert E. Green Trail by the City of Cheyenne.
- B. The Easement shall only be used for the limited non-motorized hiking and biking uses as set forth below. No other uses, express or implied, are authorized by this Agreement. Without limiting their generality, the following uses are strictly prohibited within or upon the Easement.
 - i. The operation of motorized vehicles including, but not limited to, cars, trucks, sport utility vehicles, motorcycles, snowmobiles, and all-terrain vehicles.
 - ii. Camping, fishing, hunting, campfires, and the discharge of firearm.
 - iii. All forms of sports or recreational activity, other than non-motorized hiking and biking in or within the Easement are prohibited without the prior written consent of the Grantor, which consent can be withheld for any reason or no reason.

- iv. Littering, the creation of any unsanitary condition, defacing the Grantor's Property, damaging or injuring trail improvements or property within the Easement, impeding access to the Grantor's Property or to adjoining property, removing any survey staking, collecting or removing water, firewood, rocks or artifacts, or any other activity that results in harassment or injury to wildlife or plants, is strictly prohibited. Users of the Easement shall not bring dogs or any other domesticated or non-domesticated animals onto the Easement or the Grantor's property.
- v. The Easement shall be closed to the general public every year during the period of time from August 15th to February 28th of the following year to coordinate with elk hunting season as prescribed by the Wyoming Game and Fish Department. Grantee shall be responsible for signage alerting the general public to the closure of the Easement.

C. Neither Grantor nor Grantee shall impose any fees or charges for lawful entry upon or use of the Easement.

6. Compliance. In the event that non-compliance with any restriction contained herein or in the Conservation Easement with respect to the Easement comes to attention of Grantee, Grantee shall notify the Grantor and the Conservancy in writing of such non-compliance and shall work with the Grantor and the Conservancy to correct such non-compliance. Grantee shall consult with the Grantor and the Conservancy and may elect to close or restrict the use of the Easement indefinitely should the Grantee determine, following consultation with the Grantor and the Conservancy, that the Grantor's intent as set forth herein or the Conservation Easement is being violated by the occurrence of verified incidents of trespass, vandalism, adverse environmental impacts, substantial littering, or such other similar incidents. Grantee shall provide prior notice to, and consult with, the Conservancy, before any decision is made by Grantee to restrict or close use of the Easement shall become effective.

7. Miscellaneous.

- A. The Easement may not be transferred or assigned by Grantee without the prior written consent of the Grantor which consent shall not be unreasonably withheld.
- B. All notices or other documents required or authorized to be sent by one party to the other shall be in writing and shall be deemed given to a party when personally delivered, or when deposited in the United States mail, sufficient postage prepaid, return receipt requested, addressed as follows:



If to Grantor:

Robert E. Green, Sr.,
Trustee of the Robert E. Green Sr., Living Trust, dated August 11, 2015
279 Road 102
Granite Canon, WY 82059

If to Grantee:

City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

If to the Conservancy:

The Nature Conservancy
258 Main Street
Lander, WY 82520

With a copy to:

The Nature Conservancy
Western Resource Office
2424 Spruce Street, Suite 100
Boulder, CO 80302

Each party shall notify the other party if its address changes from time to time.

- C. Grantee agrees to be bound by all covenants, terms, conditions, restrictions and limitations expressed herein.
- D. The Easement granted herein and all provisions of this Agreement shall run with the land and shall be applicable to, binding upon and inure to the benefit of the parties, their respective transferees, representatives, successors and assigns.
- E. This Agreement contains the entire understanding of the parties. There are no representations, warranties, covenants or undertakings other than those expressly set forth herein.

- F. This Agreement may not be modified or amended except in writing signed by all the parties hereto. The laws of the State of Wyoming shall govern the validity, performance and enforcement of this Agreement. In the event of litigation arising from a dispute under this Agreement, the prevailing party shall be entitled to recover its costs and expenses, including reasonable attorney fees from the non-prevailing party.
- G. A waiver of a breach of any term of this Agreement will not be considered a waiver of a further breach of the same term, a waiver of a breach of any other term, or a waiver of such waiving party's right to declare an immediate or a subsequent default.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the day and year first written above.

GRANTOR:

Robert E. Green, Sr., Trustee
Robert E. Green, Sr., Trustee of the Robert E. Green,
Sr., Living Trust dated August 11, 2015.

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this 13th day of November, 2015, by Robert E. Green, Sr., Trustee of the Robert E. Green, Sr., Living Trust.

Witness my hand and official seal.

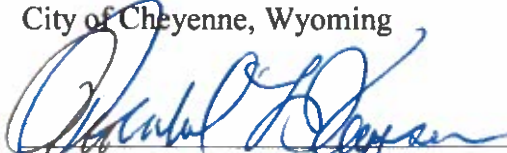
(SEAL)



Marilyn Sutherland
Notary Public
My Commission expires on Dec. 27, 2018.



GRANTEE:
City of Cheyenne, Wyoming


Richard L. Kaysen, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this 13th day of November, 2015
2015, by Richard L. Kaysen, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

(SEAL)




Notary Public
My Commission expires on Dec. 27, 2018



EXHIBIT A

Property Description

All that certain real estate situated in Laramie County, Wyoming, more particularly described as follows:

All of Sections 11 and 14, Township 12 North, Range 70 West of the 6th P.M., Laramie County, Wyoming, lying Southerly of the Union Pacific Railroad right of way.



RECP #: 673887

RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 160

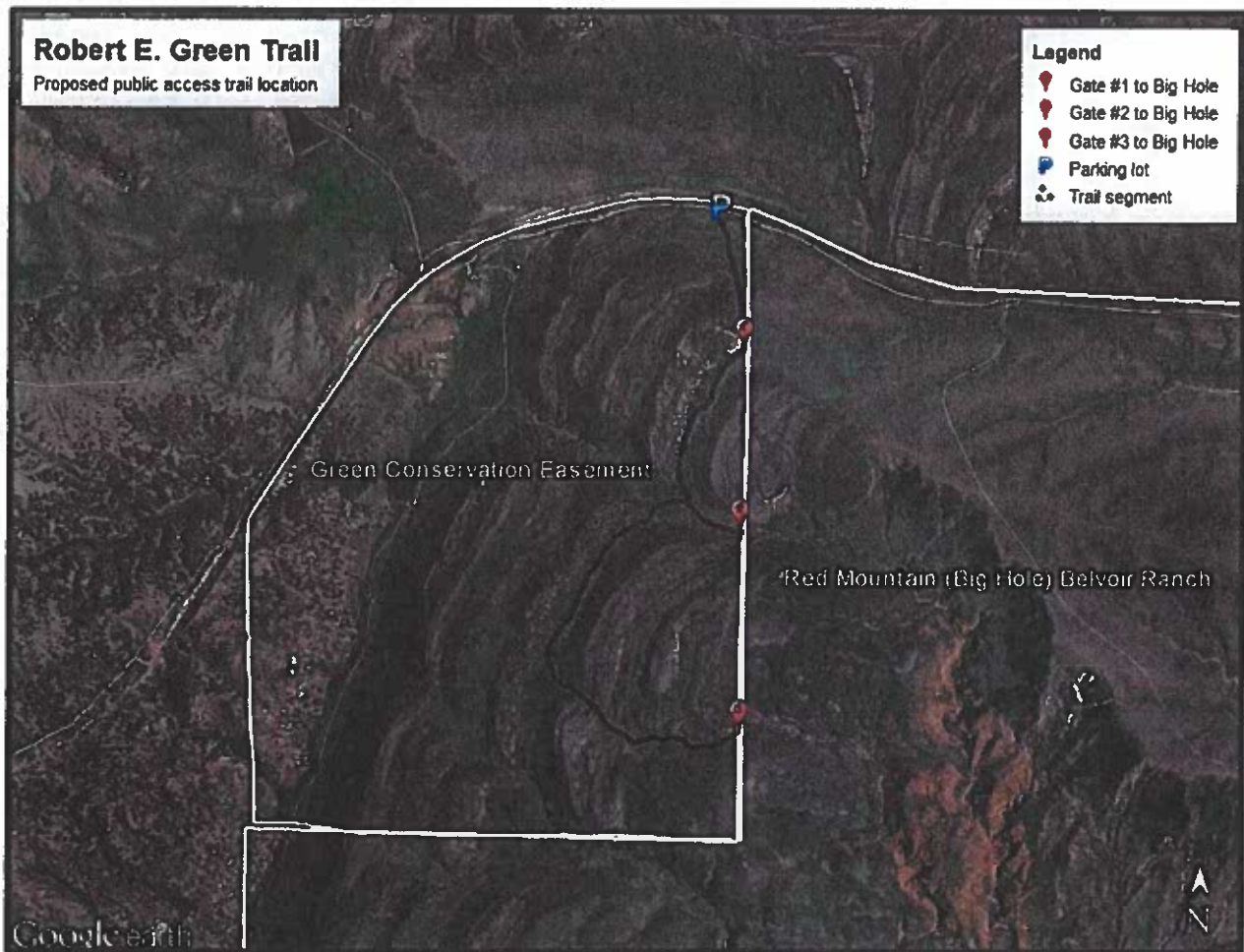
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 8 OF 9

Exhibit B

Trail Corridor

Robert E. Green Trail GPS points

Parking gate: 41° 1'10.68"N
105°11'33.13"W
Gate #1: 41° 0'57.06"N
105°11'29.45"W
Gate #2: 41° 0'38.26"N
105°11'29.58"W
Gate #3: 41° 0'17.46"N
105°11'29.30"W



RECP #: 673887

RECORDED 11/17/2015 AT 2:27 PM BK# 2474 PG# 161
Debra K. Lathrop, CLERK OF LARAMIE COUNTY, WY PAGE 9 OF 9